NON-DISCLOSURE AGREEMENT

Investment Fund — Data Room Access (One-Way: Receiving Party Only)

BETWEEN

Meridian Capital Partners Suite 601, 18 Forum Lane, Grand Cayman KY1-1104, Cayman Islands Exempt Limited Partnership — Cayman Islands Monetary Authority

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation (the "Receiving Party")

Reference: **MCP-NDA-2024-014**

Date: **21 November 2024**

Governing Law: **Cayman Islands**

Confidentiality Level: **STRICTLY CONFIDENTIAL — RECEIVING PARTY OBLIGATIONS ONLY**

IMPORTANT NOTICE: THIS NON-DISCLOSURE AGREEMENT IMPOSES BINDING CONFIDENTIALITY AND NON-USE OBLIGATIONS EXCLUSIVELY ON NOVATECH SOLUTIONS INC. AS RECEIVING PARTY. MERIDIAN CAPITAL PARTNERS DOES NOT ASSUME ANY CONFIDENTIALITY OR NON-USE OBLIGATIONS UNDER THIS AGREEMENT. THE RECEIVING PARTY IS ADVISED TO SEEK INDEPENDENT LEGAL ADVICE BEFORE EXECUTING THIS AGREEMENT.

1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Non-Disclosure Agreement together with all schedules and as amended from time to time;

"Authorised Representatives" means those employees, officers, directors, and professional advisers of the Receiving Party who have a strict and demonstrable need to know the Confidential Information for the Purpose and who are bound by confidentiality obligations no less restrictive than those in this Agreement;

"Cayman Islands Law" means the laws of the Cayman Islands as in force from time to time, including the Confidential Information Disclosure Law (2016 Revision) and the Misuse of Confidential Information Law;

"Confidential Information" has the meaning given in Section 2;

"Disclosing Party" means Meridian Capital Partners, acting through its general partner and duly authorised representatives;

"Effective Date" means 21 November 2024;

"Fund Materials" means any offering documents, limited partnership agreements, subscription agreements, side letter terms, financial statements, investor reports, portfolio valuations, and related documentation of Meridian Capital Partners or any fund managed or advised by Meridian Capital Partners;

"Purpose" means the evaluation by the Receiving Party of a potential technology services arrangement with Meridian Capital Partners, including access to the Disclosing Party's data room for such evaluation;

"Receiving Party" means NovaTech Solutions Inc., and includes its Authorised Representatives for the purposes of Section 3;

1.2 The singular includes the plural and vice versa. Headings do not affect interpretation.

2. CONFIDENTIAL INFORMATION

2.1 **"Confidential Information"** means all information disclosed by or on behalf of the Disclosing Party to the Receiving Party in connection with the Purpose, whether disclosed in writing, orally, electronically, visually, or by any other means, including without limitation: (a) investment strategies, portfolio construction methodologies, risk parameters, and asset allocation models; (b) portfolio company information, including financial performance data, operational metrics, management information, and strategic plans; (c) investor identity, investor commitments, capital account balances, and distribution terms; (d) Fund Materials; (e) deal flow information, pipeline investments, and terms of pending transactions; (f) financial models, valuations, and performance attribution data; (g) management fees, carried interest calculations, and economic terms; and (h) any analyses, compilations, memoranda, or summaries prepared by the Receiving Party or its Authorised Representatives based on or derived from the foregoing.

2.2 **Extended Scope — All Oral Communications. All oral communications between representatives of the parties shall constitute Confidential Information without requirement for written confirmation or subsequent written summary**. The Receiving Party acknowledges that the commercial sensitivity of investment fund operations, portfolio data, and fund economics renders oral confirmation requirements impractical and commercially unreasonable, and agrees that this extended scope is a material and non-negotiable term of this Agreement.

2.3 **Exclusions.** Confidential Information does not include information that the Receiving Party can demonstrate by clear and contemporaneous written evidence: (a) is publicly available other than as a result of a breach of this Agreement; (b) was known to the Receiving Party prior to disclosure, free of confidentiality obligations; (c) was independently developed without reference to the Confidential Information, provided the Receiving Party can demonstrate such development by documented evidence contemporaneous with the development; or (d) was received from a third party lawfully entitled to disclose it without restriction.

3. OBLIGATIONS OF THE RECEIVING PARTY

3.1 **Confidentiality.** The Receiving Party shall: (a) hold all Confidential Information in strict confidence and treat it with the highest degree of care and security; (b) use its **best efforts** to prevent any unauthorised disclosure, copying, or use of any Confidential Information; (c) not disclose any Confidential Information to any person other than Authorised Representatives without the prior written consent of the Disclosing Party; and (d) ensure all Authorised Representatives are bound by written confidentiality obligations at least as protective as those in this Agreement before receiving Confidential Information.

3.2 **Standard of Care.** The standard of protection required of the Receiving Party is **best efforts**, which the parties agree is higher than a reasonable care standard and reflects the commercial sensitivity of Fund Materials and investment-related information. The Receiving Party shall not argue that "commercially reasonable" or any lesser standard is applicable.

3.3 **Security Measures.** The Receiving Party shall implement and maintain security measures including, without limitation: (a) restricted physical access to Confidential Information; (b) password-protected and encrypted electronic storage; (c) network access controls and firewall protection; (d) prohibition on copying or reproducing Confidential Information except as strictly necessary for the Purpose.

3.4 **No Competing Use.** The Receiving Party shall not use any Confidential Information, directly or indirectly, in connection with any investment decision, market transaction, or competitive intelligence activity, other than for the Purpose.

4. TERM AND DURATION — PERPETUAL OBLIGATIONS

4.1 This Agreement shall be effective from the Effective Date.

4.2 **Perpetual Confidentiality.** The obligations of confidentiality and non-use imposed on the Receiving Party by this Agreement shall be **perpetual and shall not expire, regardless of the passage of time, the termination of this Agreement, or any other event**. The parties expressly acknowledge and agree that a fixed term is inappropriate given the commercial sensitivity of Fund Materials, investor information, and portfolio company data, and that the perpetual nature of these obligations is a material and non-negotiable term of this Agreement.

4.3 This Agreement may be terminated by the Disclosing Party at any time on written notice to the Receiving Party. Termination shall not affect the perpetual obligations in Section 4.2.

5. PERMITTED DISCLOSURES

5.1 The Receiving Party may disclose Confidential Information only where strictly required by applicable law, court order, or regulatory authority of competent jurisdiction, provided it: (a) gives the Disclosing Party reasonable prior written notice where legally permissible; (b) cooperates with the Disclosing Party in seeking a protective order; (c) discloses only the minimum strictly required; and (d) requests confidential treatment of disclosed information.

6. NO RETURN OR DESTRUCTION OBLIGATION

6.1 **No Return or Destruction.** The parties expressly agree that **no obligation to return or destroy Confidential Information** shall apply to the Receiving Party under this Agreement. The Receiving Party's confidentiality obligations are perpetual and ongoing, and the retention of physical or electronic copies of Confidential Information does not relieve the Receiving Party of any obligations under this Agreement. The absence of a return or destruction mechanism reflects the perpetual nature of the Receiving Party's obligations.

7. ASYMMETRIC REMEDIES

7.1 **Disclosing Party Remedies.** The Disclosing Party shall be entitled, without limitation, to: (a) seek injunctive relief and specific performance from any court of competent jurisdiction without posting bond or other security; (b) recover all actual and consequential losses, including loss of investment returns, management fees, and reputational damage, arising from any breach; and (c) seek any other equitable or legal remedy available.

7.2 **Waiver of Injunctive Relief — Receiving Party.** The Receiving Party hereby expressly and irrevocably **waives any and all rights it may otherwise have to seek injunctive or other equitable relief** against the Disclosing Party in connection with any dispute, claim, or matter arising from or relating to this Agreement. The Receiving Party's sole and exclusive remedy against the Disclosing Party for any breach or alleged breach shall be an action for monetary damages. The Receiving Party acknowledges that this asymmetry of remedies is intentional, commercially negotiated, and reflects the one-way nature of this Agreement.

8. NO LICENCE; NO FURTHER OBLIGATION

8.1 Nothing in this Agreement grants the Receiving Party any licence, right, or interest in any Confidential Information or in any intellectual property of the Disclosing Party. The disclosure of Confidential Information does not constitute any representation as to its accuracy or completeness.

8.2 Nothing in this Agreement obligates either party to enter into any further commercial arrangement, and either party may at any time decline to proceed with any discussion or transaction without liability.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Meridian Capital Partners:

Suite 601, 18 Forum Lane, Grand Cayman KY1-1104, Cayman Islands

Attention: General Partner — Legal Affairs, Meridian Capital Partners

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **Cayman Islands**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the Grand Court of the Cayman Islands** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the Grand Court of the Cayman Islands on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of

Meridian Capital Partners

Signature: ______________________________

Print Name: [NAME]

Title: Managing Partner

Date: __________________________________

Witness Name: __________________________

Witness Sig.: ___________________________

SIGNED for and on behalf of

NovaTech Solutions Inc.

Signature: ______________________________

Print Name: [NAME]

Title: General Counsel

Date: __________________________________

Witness Name: __________________________

Witness Sig.: ___________________________